TYPES OF MAJORITY IN THE INDIAN PARLIAMENT

Comprehensive Structural Formulas, Legal Definitions & Constitutional Applications

1. BASIC & FUNCTIONAL MAJORITIES

A. Simple Majority (Functional / Ordinary Majority)

> $$\textit{Simple Majority} > \tfrac{1}{2} \times \textit{(Members Present and Voting)}$$

Excludes: Absent members and members present who choose to abstain from voting.

Key Applications:

- Passing Ordinary, Financial, and Money Bills.
- Passing No-Confidence, Confidence, Censure, or Adjournment Motions.
- Election of the Speaker and Deputy Speaker of Lok Sabha and State Legislative Assemblies.
- Approving President's Rule (Article 356) and Financial Emergency (Article 360).

B. Absolute Majority

> $$\textit{Absolute Majority} > \tfrac{1}{2} \times \textit{(Total Sanctioned Strength of the House)}$$

Note: Vacancies (deaths, resignations, disqualifications) do not alter the required threshold.

Key Applications:

- Used during government formation to establish baseline structural command in the Lok Sabha / State Assemblies.
- Rarely used alone for passing legislation; generally acts as a baseline requirement combined with special majorities.

C. Effective Majority

> $$\textit{Effective Majority} > \tfrac{1}{2} \times \textit{(Effective Strength of the House)}$$
> $$\textit{Where Effective Strength} = \textit{(Total Sanctioned Strength)} - \textit{(Vacancies)}$$

Excludes: Vacancies due to resignation, death, or disqualification are subtracted prior to calculating the majority requirement.

Key Applications:

- Removal of the Vice-President of India in the Rajya Sabha (Article 67(b)).
- Removal of the Speaker and Deputy Speaker of the Lok Sabha and State Legislative Assemblies.
- Removal of the Deputy Chairman of the Rajya Sabha.

2. SPECIAL MAJORITIES (FOUR DISTINCT TYPES)

Type 1: Under Article 249 & Article 312

> ***Majority ≥ ⅔ × (Members Present and Voting)***

Key Applications:

- **Article 249:** Authorizing Parliament to legislate on subjects in the State List in national interest (Rajya Sabha only).
- **Article 312:** Authorizing Parliament to create one or more new All-India Services common to Union and States (Rajya Sabha only).

Type 2: Under Article 368 (Non-Federal Constitutional Amendments)

> ***Majority ≥ ⅔ × (Members Present and Voting)*** **AND** ***> ½ × (Total Sanctioned Strength of the House)***

Key Applications:

- Passing Constitutional Amendment Bills that do not affect the federal structure.
- Removal of Supreme Court and High Court Judges.
- Removal of the Chief Election Commissioner (CEC) and Comptroller and Auditor General (CAG).
- Approval of National Emergency under Article 352 (in both Houses).

Type 3: Under Article 61 (Impeachment of the President)

> ***Majority ≥ ⅔ × (Total Sanctioned Strength of the House)***

Note: This is the strict and highest voting threshold prescribed under the Indian Constitution.

Key Applications:

- Exclusively required for the Impeachment of the President of India on grounds of 'violation of the Constitution'.

Type 4: Under Article 368 + State Ratification (Federal Constitutional Amendments)

> **1. Parliamentary Approval:** ***≥ ⅔ × (Present & Voting)*** **AND** ***> ½ × (Total Strength)*** [In each House]
> **2. State Ratification:** ***Approval by ≥ 50% of State Legislatures*** via ***Simple Majority***

Key Applications:

- Election and manner of election of the President (Articles 54, 55).
- Extent of executive power of the Union and States (Articles 73, 162).
- Provisions relating to the Supreme Court and High Courts.
- Distribution of legislative powers between Union and States (Seventh Schedule).
- Representation of States in Parliament.
- Amendment to Article 368 itself.
- Major tax reforms impacting state revenue sharing (e.g., Goods and Services Tax / GST via 101st Amendment).

3. COMPARATIVE SUMMARY MATRIX

Majority Type	Base Formula / Criterion	Considers Vacancies?	Primary Application Area
Simple Majority	> ½ × (Present & Voting)	No (Excluded)	Ordinary Bills, Budget, Confidence Motions
Absolute Majority	> ½ × (Total Sanctioned Strength)	Yes (Included in total)	Government Formation Benchmark
Effective Majority	> ½ × (Total Strength – Vacancies)	Deducted from Total	Removal of Presiding Officers (Speaker/VP)
Special (Art. 249/312)	≥ ⅔ × (Present & Voting)	No (Excluded)	State List Subjects, All-India Services
Special (Art. 368)	≥ ⅔ × (Present & Voting) AND > ½ × Total	Yes (in 2nd condition)	Constitutional Amendments, Judge Removal
Special (Art. 61)	≥ ⅔ × (Total Sanctioned Strength)	Yes (Included in total)	Impeachment of the President
Special (Art. 368 + Federal)	Art. 368 Majority + Ratification by ≥ 50% States	Yes (in Parliament)	Federal Provisions & GST Amendments

Constitutional Note: The terms "Simple Majority", "Absolute Majority", and "Effective Majority" are descriptive categories used by constitutional scholars and parliamentarians for clarity. The Constitution explicitly describes the exact mathematical mechanisms within specific Articles (e.g., "majority of all the then members" for Effective Majority, or "majority of the total membership" for Absolute Majority).